Monday, December 16, 2024

Committee Reports

CMA Board Meeting

Coolfont Mountainside Association

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting

December 16, 2024, 7:00pm

AGENDA

I. Roll Call – Proof of Quorum

II. Approval of Minutes

a. November 18, 2024

III. Reports of Officers and Directors

b. President's Report
c. Vice President's Report
d. Treasurer's Report
    i. Financial Update
    ii. WVPSC Tariff Review
e. Directors' Reports

IV. Operations Manager Report, Cathy Levey

a. Water
    i. Activities & Updates
b. Sewer
    ii. Lagoon Liner Project
c. Project List
    iii. Septic Survey – Status

V. W&S Funding, Cindy Kelleher

a. Weinberger and R Reservoirs Refurbishing - Estimates, funding, and timing
b. WSPSD Contract Renegotiation
c. Posting part-time WS Operator position
d. Septic Maintenance Policy Revisions (based on gallons) – Status

VI. Owner Forum

VII. Executive Session (held prior to open session)

a. Delinquency Report

VIII. Adjournment

Next Meeting – January 18th, 2024, 10:00am

Coolfont Mountainside Association Water & Sewer
Board of Directors Meeting
November 18, 2024, 7:00pm
AGENDA

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	A
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Anna Connolly	A
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cathy Levey, Rosemary Bigelow, Cindy Kelleher, Iris Melton, Stephanie Rebant, Francis Luscher, Mark Johnson, Vesta Kimble, Tom Holz, Joe Auslander, Chris Peabody, Gary Farmer, Adam Zuckerman, Cindy Kelleher

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 7:05pm. Valerie Creason acknowledged proof of quorum of board members.

Approval of Meeting Minutes (August 17, 2024 & October 26, 2024)

Valerie Creason motioned to approve the meeting minutes for August 17, 2024. Dawne Holz seconded. Vote: Yea=4, Nay=0, Absent=3

Valerie Creason motioned to approve the meeting minutes for October 26, 2024. Steve Katz seconded. Vote: Yea=4, Nay=0, Absent=3

Reports of Officers and Directors

a. President's Report - none
b. Vice President's Report - none
c. Treasurer's Report given by Dawne Holz
   - ***Refer to full Treasurer's Report on the CMA website***
   - As of October 31st, we are running slightly over budget at 87% after 83% of the year.
   - Made first payment on NWRA Loan with direct debits setup for further payments
   - Financial Update
     - Cathy Levey noted the labor and repairs in the budget is running low. Dawne Holz noted that we have money we have set aside for repair and replacement items don't see an issue with us taking care of the minor leaks over the next 6 weeks.
   - WVPSC Tariff Review – Board Approval of Settlement Agreement from the PSC Staff for Tariff Case No 24-0457-WS-19A. PSC Agreed to reduce the minimum charge for water to 3,000 gallons. This was one of the items requested by CMA. Waiting for the Administrative Law Judge to issue an order. If it happens by Friday, we will be able to bill easily without and interim billing or prorating, etc.
   - Steve Katz suggested that we send an email to the community as to what the changes are.
   - Dawne agreed and noted that we also need to post it in the Morgan Messenger, as well.
   - Communication on meter reading will also be sent.
   - Valerie Creason thanked Dawne! This was a huge effort. All of the research, planning, spreadsheets, she pulled together. And thank you to the WS Committee for jumping in when she needed support. This took a lot of Dawne's time, and we can't thank you enough!!

d. Directors' Reports - none

Operations Manager Report, Cathy Levey

Refer to full Water and Sewer Reports on the CMA website

Old Business

Highlights of two key areas were presented below:

- For Water
  - Cindy Kelleher will be helping Cathy Levey to get the 3rd and final Reservoir Cleaning quote.
  - Repairs
    - The Water Leak repairs that we performed on Friday did not require cutting into a pipe. Therefore, a boil water notice was not needed. Prior to the fix, LMNO ran at 7.2 gal per minute. Once finished, it reduced to 2.9 gallons per minute, which is acceptable.
    - Not all issues are breaks in water lines, some are fittings, valves, etc. Therefore, starting research to find other suppliers with reliable fittings.
    - When we do the main water replacements, we may want to consider researching better pipes and fittings.
    - Looking into how we can do leak location differently.
- For Sewer
  - After receiving encouragement from Brian Bailey at DEP that we could do a land application on the meadow. Mike Connel from DEP then denied the request. Therefore, a different workplan is needed.
  - Pump with ¾ inch pipe is floating in Lagoon and is pumping effluent out to the wetlands to reduce the level.
  - A 15,000-gallon basin was set up that will be used to remove sludge when ready.
  - WSPSD and Cathy Levey are monitoring the lagoon.
  - Instead of meadow we will be using a pump truck to haul the sludge away.
  - Dawne Holz noted that we can't use the old lagoon area. For the cost to pump and haul away the sludge, will that be billed to us separately or was it included in the contract?
  - The ballpark estimate is $6,000. This is a change order and may add to the cost. There are several factors that need to be considered.
  - John Desanto asked for a crane truck from our contractor to unload the 15,000-gallon basin. That will cost about $500.
  - John Desanto also asked about arranging for a Skid Steer out to unload the liner, which is nearly ready for delivery.
  - Later, we will need the crane truck again to load the 15,000-gallon basin.
  - Cindy Kelleher all of these other expenses should come out of Desanto's budget.
  - Valerie Creason agreed that these are known items to do the work and would be covered in the contract. For example, they know the need to lift the liner, unload and load the 15,000-gallon basin, etc.
  - Valerie Creason also noted that when drawing up the contract, Desanto knew he didn't have the final approval from the DEP, so he probably added a buffer for this. Typically, when drawing up a contract, and knowing your line of work, one usually puts in their buffers or failsafe when pricing out their contracts.
  - Cathy asked if the contractors are to send the bills to Desanto?
  - Valerie answered, Yes and that this is exactly how the contract is worded. Subcontractors used in the local area, or his own, will bill him. Therefore, Dennis Schafer should send his bill to John Desanto. Not to CMA. Cindy Kelleher confirmed the wording in the contract.

New Business

- Septic Maintenance Policy (based on gallons) – Status ongoing with Cindy Kelleher
- Septic Survey – Dawne Holz clarified that this is the long-term project to investigate the 12 or so properties that are not being billed for sewer services.

    - We received information from the county health department that took care of 4 properties in question and gave us the plats. We learned that 2 of those properties do have their leach field on common land.
    - Next step is for WS Committee on next steps to contact the owners and determine if we need to require for them to use our septic system. More to come on this.
- WSPSD Contract Renegotiation – Follow-up email sent by Cindy Kelleher. More to come.

Project List

Cathy Levey reviewed the project list presented to board members

W&S Funding – Cindy Kelleher

- Reached out to NRWA, Gloria York. We can apply again. We can have 2 loans with NWRA not to exceed $200 Total.

Owner Forum

- Chris Peabody thanked Dawne Holz and those behind the scenes for putting together the easy instructions on commenting on the PSC site.
- Dawne Holz thanked those that commented on the PSC site, we believe that this did help our case.
- Iris Melton asked what country the fittings were made in.
- Cathy Levey said that they are trying to determine. Hard to tell, but most likely made in China. Monty recommended Dixon Valve out of Chestertown, MD.
- Valerie Creason announced a recent caution related to the location of our Playground. While working through the lagoon liner sludge disposal issue, we learned the playground should not be located on CMA's old, retired lagoon. Therefore, given this warning, recommend that we move the playground quickly, or we rope it off until we can move it, and not have our children on it.
- Steve Katz asked where the playground could be relocated. Valerie suggested to the left of the pool handicapped spots. Dawne Holz also noted concern as we have had snake and bee issues where it currently resides, as well.
- Steve asked Stephanie Rebant (Site Manager) to look into this and make a few recommendations on location.

Executive Session (held prior to open session)

a. Delinquency Report

Adjournment

At 7:35pm Dawne Holz motioned to adjourn; Steve Katz second. Vote: Yea=4, Nay=0, Absent=3

Coolfont Mountainside Association – Water & Sewer
Board of Directors Meeting – December 16, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 11/30/24 are attached and cover 91.7% of the budget year. Expenses are running just slightly over budget at 95.8%. We have collected 100.4% of projected income and Q4 invoices went out on 12/11/24.

Accounts

2024 Q3 Billing

- All invoices for Q3 were paid, the last on 11/24/24.

2024 Q4 Billing

- Invoices sent out on/about 12/11/24. A little later than normal due to PSC Tariff pending (we were holding invoicing, hoping to avoid pro-rating next billing period. See Tariff info)
- 33 customers have already paid online by 12/14/24.
- Two owners have requested leak adjustments.

NWRA Loan

- Sent ACH information for direct debit for loan payments starting December 1, 2024.
- Dec 1 payment not showing on report. Asked bookkeeper for clarification. Possible it posted to checking account (direct debit) but she has not entered it in Quickbooks yet.

Monthly Updates

Updates include details of attached reports as of the end of the previous month.

- Funding from CMA of $4,166.67/month was transferred into W&S each month for Jan – Jun 2024.
- With the application of interim rates by the PSC, we have suspended additional contributions from CMA to CMAWS.

December/January:

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (based on IRS business mileage rate).

January

- 525 Sewer System Supplies running slightly over budget due to purchase of replacement pipe for wetlands.

February

- Income is only at 3.8% as first billing of the year isn't until March (residual December payments received in Jan/Feb).

March

- 415 Water System Labor includes 4 months of payments to WSPSD.

- 446 Chemical & Testing Sewer includes Pace testing of $275 per quarter, this will be over budget for the year.
- 515 Sewer System Labor includes 4 months of payments to WSPSD.
- 625 Mileage includes two trips to Lab for water safety testing after repairs.

April

- No updates. All line items are within budget parameters.

May

- No updates. All line items are within budget parameters.

June

- One online payment was rejected. The owner was contacted. Owner paid full invoice plus the $10 rejection fee.

July

- Interim tariff rates in place. We have suspended transfers from CMA.
- 725 Telephone expense running higher than usual with WS office phone and connectivity. Will adjust 2025 budget accordingly.
- 606 Payment processing fees higher than budget as more customers are paying online. Will adjust 2025 budget accordingly.
- Expect invoices for customer sewer line extension in the next month. We will reconcile invoices with customer deposit and bill/refund as appropriate.
- 2025 WS Operations Manager contract completed.

August/September

- Customer Sewer Extension project completed. Invoices reconciled and owner refunded extra deposit funds.
- 517 Sewer System Labor over budget due to expenses of Sewer Extension, offset by 340 Income Other.
- 446 Chemicals and Testing Sewer increase due to the increase in Pace Labs charges for required quarterly testing.

October

- 420 Water System Labor Other nearly at budget. Notified Operations Manager that Fund Accounts are available for use, if needed, for additional water system repairs.

November

- 420 Water System Labor Other slightly over budget due to additional water system repairs.

PSC Tariff Review

- The Water/Sewer Committee is working to submit paperwork to PSC to initiate a Tariff Review for water and sewer. We are planning to discuss several topics with the PSC, including – but not limited to – tiered rates, reduced minimum charges, and fees for mailed invoices.
- Board approved motion to move forward with request on 1/13/24.

March

- Contacted PSC in mid-March about requirements for emergency rate increase to cover infrastructure project funding. PSC requested more information on utility and planned projects. Information provided.

April

- Call with PSC 4/9/24. CMA must file the Annual Water/Sewer Reports with PSC prior to requesting emergency rate increase.
- Requested BTM CPA to complete reports by 05/31/24.

May

- Draft reports received and comments returned to BTM CPA on 5/6/24. Waiting final review then submission to PSC before sending request for emergency rate increase.
- Filing sent to PSC in late May. Received confirmation of receipt and Case No. for Water/Sewer tariff reviews. Schedule notes staff report due in September and ALJ finalization in January 2025. Not quite the accelerated schedule we had hoped for.
- Responded to BTM CPA who received questions from PSC on Annual Reports; concerning reserve funds.

June

- PSC issued interim rates which will be used for the September billing. Notice posted in local paper per requirements. Owners notified by email. No email responses received.
- PSC Analyst, James Riley, will be on site at BTM CPA July 17-19 reviewing financials. The treasurer will be there July 18-19 to assist as needed.
- PSC Staff recommendation for rates due in September.
- CMA to sign interim rate tariffs and return to PSC.

July

- Interim tariffs signed, returned to PSC, and we received PSC stamped copies for our records.
- Copy of 2025 WS OpsMgr contract sent to PSC rep, James Riley. Have not received confirmation of receipt yet.
- Working to get information on WSPSD estimate for 2025 so PSC can take that cost into account on rate review (Steve, have we contacted WSPSD about this yet?)
- Met with PSC rep at BTM CPA. Provided information on questions about a few invoices.

August/September

- Received PSC Staff Recommendation on Friday, Sept 13, 2024.
- Submitted request for extension to respond to October 17, 2024. Request approved by PSC.
- Working on Response from CMA to Staff Recommendation.
- Owners requested at the annual meeting sample language and information on where to submit comments to the PSC in support of CMA Response. Working on language to send to owners.

October

- Sent owners information on filing comments and status of case.
- Six owner comments filed (as of 10/31)

- Received PSC Staff offer of settlement on 10/30/24. Board and WS Committee are reviewing terms and will send response to PSC. No deadline provided by PSC.
- PSC Staff requested extension to 11/15/24 to File formal response to CMA. PSC granted extension.

November

- WS Committee reviewed PSC offer and recommended approval the Board. The board agreed and approval was sent to PSC. PSC requested confirmation of approval; documentation provided to PSC.
- Procedural Order issued on 11/19/24 for publication of new rates. Email and USPS mail sent to all customers with required information on 11/20/24. Filed form 6B, confirmation of notice with PSC on 11/20/24.
- PSC Order issued on 12/2/24 approving rates. There is a 15-day period to file any exceptions by either party. We do not anticipate any exceptions to be filed.
- The order becomes final 5 days after the 15-day wait period. The order will be final and new rates in effect on December 22, 2024.
- Waiting for PSC Tariff Office to send us new Tariff forms to sign and return.
- Customer meters were read on 12/10/24. We may have to prorate the March invoicing to compensate for the 12 days of service at the Interim Rates. However, it's possible many customers will have a lower bill with the new rates.

Water and Sewer Committee Report for December 2024 Board Meeting

Water:

Dawne Holz is covering the tariff review and rate increase in her treasurer's report as the final steps are in completion, to be put in effect at March 2025 billing.

Cindy Kelleher will be covering the following topics in her report, having played a critical role in each of the areas listed below:

1. Estimates, funding and timing for cleaning and refurbishing the Weinberger and R Reservoirs

2. Contract Negotiation with WSPSD

3. Posting of a part-time operator's position

4. Revisions in the Septic Maintenance Policy

Operator's Update:

Supplies (to be delivered)have been ordered in anticipation of next year's repairs and for barn stock, as well as for any potential emergency meter replacements this winter. Four small, metered leaks are being monitored weekly to assess for repair in 2025 and a pressure reducing valve is being monitored as well for possible replacement next year. Quarterly meter readings were completed on 12/10/24.

Sewer:

The contractor for the lagoon liner, John Disanto, was onsite from 12/9/24 through 12/12/24 to remove an additional 180,000 gallons from the lagoon and transferred it to the wetlands. The wetlands is being used as a holding

tank as the effluent is being gradually drained from the wetlands as well. The DEP inspector, Mike Kanehl, did not approve backflushing the effluent to the lagoon after the new liner is in place, resulting in the need to gradually empty the wetlands by way of adjusting the pipes in the chamber at the far end of the wetlands. This slow process will take approximately 2 to 4 weeks, at which time John will return to start the sludge removal. The liner will be delivered in his absence.

CMA – WATER AND SEWER OCTOBER 23, 2024

TO: VALERIE CREASON

FROM: CINDY KELLEHER

SUBJECT: WATER AND SEWER PROJECT AND FUNDING

CC: ROSEMARY BIGLOW & CATHY LEVEY

Project

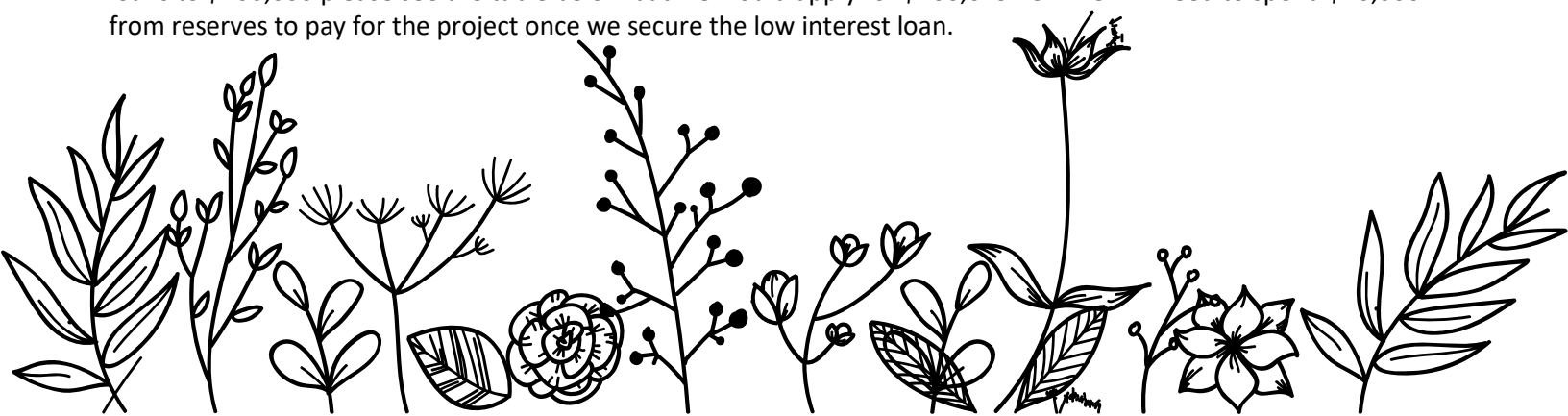
- **Lagoon Liner** In-Process, Cathy will update.
- **Water Tank Rehab**
  - W&S reviewed 2 bids: Southern Corrision and Poly Coating Solutions
  - Additional Due Diligence Requested and Completed

Attached a summary of the cost:

	Southern Corrosion	**Poly Coating Solutions**	**Badger**	**Comparison**
Weinberger 1&2	$ 167,383	$ 136,750	Zero	
R 1,2,3	$ 10,018	$ 12,325	Zero	
Total	$ 177,401	$ 149,075	Zero	$ 28,326
Proposal Date	12/2/2024	10/7/2024	None	

Based on the conversation last night at the Water and Sewer Committee and the additional conversation with Southern Corrision and Poly Coating Solutions, LLC. I recommend we seek Board approval at the December 16th meeting and move forward with Poly Coating Solutions. As part of that approval, we need to talk about financing the project.

We should again apply to the National Rural Water Association for a 10-year low interest loan. NRWA limits the loans to $200,000 please see the table below but we would apply for $106,649.75. We will need to spend $40,000 from reserves to pay for the project once we secure the low interest loan.



NRWA	$	200,000.00
Lagoon Liner Loan	$	93,350.25
Water Tank Rehab	$	106,649.75

Warm Springs PSD Contract

- We have agreed to the task and are in discussion on the hours of effort. The hours will be between 810 to 824. The charge will be $70 an hour unless we can negotiate a better rate.
- Currently under a new contract we will save $10,000 compared to our existing contract.
- Next steps final agreement on hours and rate, then contract language. We have a meeting on January 13, 2025. The contract will need to be approved by both Board and the PSC

Staffing
We would like to post for a part-time position to assist our operations Manager.

Septic Policy in process.

Coolfont Mountainside Association
Board of Directors Meeting
December 16, 2024, 7:00pm
AGENDA

I. Roll Call – Proof of Quorum

II. Election of Officers

III. Approval of Minutes
a. November 18, 2024

IV. Reports of Officers and Directors
a. President's Report
b. Vice President's Report
c. Treasurer's Report
    i. Update
    ii. CD Research Update
d. Directors' Reports

V. Site Manager Report, Stephanie Rebant, MHRE
a. Stop Signs Quote – Board Approval Needed
b. Office/Bathrooms – painting and floor repair
c. Placards

VI. Committee Reports & Chairs

a.	Communications	Dawne Holz	Previously distributed
b.	DACC	Gary Farmer	Previously distributed
c.	Firewise	Mark Johnson	No Update Provided
d.	Neighborhood Watch	Gary Farmer	Acknowledged No Update
e.	Recreation	Chris Peabody	Previously distributed
f.	Social	Jack Wennersten	No Update Provided
g.	Welcome	Rosemary Bigelow	Previously distributed

VII. Task Force Reports & Chairs

a.	Barn	Dave Creason	Acknowledged No Update
b.	Sports Courts	Chris Peabody	Waiting on Funding
c.	Bus. Use of Property	Tom Holz	Waiting on Board

VIII. New Business
a. Recommendation for $50k CD
b. Request for addition of Stop Signs
c. Task Force & Committee Volunteers
    i. Community Notice for four volunteers to join the By-Laws Task Force
    ii. Community Notice for two volunteers to join Nominating Committee

IX. Old Business
a. Update DACC Charter
b. CMA Policy Resolutions
    i. Noise Policy – Draft created – Pending Board review and edits
    ii. Short Term Rental Policy – Draft in progress
    iii. Schedule of Fines, Fees, and Charges – Draft in progress

Next Meeting – January 18th, 2024, 10:00am

iv. Enforcement – Draft in progress

c. Project List

X. Owners Forum

XI. Executive Session (held prior to open session)

a. 2021 Corporate Transparency Act – Dept. of the Treasury's Financial Crimes Enforcement Network (FinCEN)
b. Delinquency Report
c. Violations/Legal

XII. Adjournment

Coolfont Mountainside Association
Board of Directors Meeting
November 18, 2024, 7:00pm
AGENDA

Board Members Present/Absent:

Name	P/A*	Name	P/A*
Steve Katz, President	P	Jack Wennersten	A
Norm Rosenberg, Vice President	A	Dave Creason	P
Dawne Holz, Treasurer	P	Anna Connolly	A
Valerie Creason, Secretary	P		

***P= In-Person or Zoom, A=Absent, V=Vacant**

Members/Visitors Present:

Cathy Levey, Rosemary Bigelow, Cindy Kelleher, Iris Melton, Stephanie Rebant, Francis Luscher, Mark Johnson, Vesta Kimble, Tom Holz, Joe Auslander, Chris Peabody, Gary Farmer, Adam Zuckerman, Cindy Kelleher

Roll Call – Proof of Quorum

Steve Katz called the meeting to order at 7:36pm. Valerie Creason acknowledged proof of quorum of board members.

Approval of Minutes (August 17, 2024)

Valerie Creason motioned to approve the meeting minutes for August 17, 2024. Dawne Holz seconded.
Vote: Yea=4, Nay=0, Absent=3

Dawne Holz motioned to approve the meeting minutes for October 26, 2024. Steve Katz seconded.
Vote: Yea=4, Nay=0, Absent=3

Reports of Officers and Directors

a. President's Report - none
b. Vice President's Report - none
c. Treasurer's Report – Previously distributed
   - ***Refer to full Treasurer's Report on the CMA website***
   - At 83% of the year, we are slightly ahead of budget at 88.6%.
   - Reviewed CD investments. Recommend we invest another $50,000 from reserve savings into an 18-month CD. This will leave us with over $100k in short-term savings reserve.
   - Steve Katz asked questions related to rates and terms.
   - Dave Creason asked what kind of investments we are limited to. Dawne Holz confirmed that they have to be cash equivalents.
   - Dawne Holz will do more research and get CD rates and details before making a motion at our next meeting.
   - Online Payment Processing Fees – Finance Committee researched various options and fees to provide a recommendation to the Board. The Finance Committee recommended keeping the current payment options as is. (*See Finance Committee Minutes*)

<u>Motion</u> by Dawne Holz the board accept the recommendation of the finance committee to make no changes in the current credit card processing fee system. Steve Katz Seconded.
<u>Discussion:</u> none
<u>Vote:</u> Yea=4, Nay=0, Absent 3

d. Directors' Reports - none

Site Manager Report, Stephanie Rebant, MHRE

Refer to full Site Manager Report on the CMA website

Stephanie gave a brief overview of the latest activities. Key areas being addressed

- Mapping and cleaning our culverts
- Cleaning tennis courts is a challenge as the trees need to be cut back. It takes about 4 hours each time. It makes sense to cut back the trees when there are no leaves on them. Something for the Board to consider. Dawne Holz asked Stephanie to mark the trees and cut back. The Board can then consider this against the cost to clean the courts as done today.
- Address placards continue. Stephanie will let the Board know in the next meeting the status and if she needs Board assistance.
- Office painting and cleanup looks very good. The floor repair guy from Clarks is still injured.
- Big thank you to Mark Johnson on the Firewise activities and communications!

a. Approval of Ditch Cleaning for an amount not to exceed $5,500 +tax.
   - Dennis Schafer, GHS Excavating will be doing the ditch cleaning. It could take 2 to 4 days. So based on the 4 days, it could go as high as $5,500 +tax. Clear the leaves and haul them away.
   - Steve Katz asked if we have the funding for this.
   - Dawne Holz noted that we have $20,000 in reserve funds. But this is more maintenance, therefore it would be paid out of the operating budget under Storm Water Maintenance which has been exhausted for this year. However, given we are also doing this for the purpose of creating a road maintenance plan and part of the long-term road work, we could probably justify it to be used out of the reserve allocation, which is a Board decision.
   - Stephanie noted that she cannot move forward with the map and road maintenance planning, because she can't see anything.

Motion by Dawne Holz to approve up to $6,000 to clear the ditches in order to facilitate the road maintenance plan to be paid from reserves. Steve Katz Seconded.
Discussion: none
Vote: Yea=4, Nay=0, Absent 3

b. Approval of Snowplow Contract (Casey Pentoney – same price as last year)
   - Stephanie Rebant noted that she is working to get Casey Pentoney's signature

Motion by Dawne Holz to approve 2024-2025 snowplow contract with Pentony Brothers at price provided. Seconded by Steve Katz
Discussion: none
Vote: Yea=4, Nay=0, Absent 3

Committee Reports & Chairs

a. Communications — Dawne Holz — Previously distributed
   - New website launched
   - Gina Baum (Facebook Admin) researched our rules; no changes needed

b. DACC — Gary Farmer — Previously distributed
   - Gary Farmer noted that if neighbors see something, go to the website and see who the point of contact is for that type of inquiry. Such as DACC, or Neighborhood Watch. By contacting the chair, you will probably get a faster response.

c. Firewise — Mark Johnson — No Update Provided
   - From Mark Johnson's research in terms of total hours submitted by CMA members. For 2020 we submitted 126 hours; for 2021 we submitted 132 hours; for 2022 we submitted 233 hours; for 2023 we submitted 333 hours, and for this year 2024 we jumped to 1,500 hours!!!
   - Mark also expressed congratulations to Stephanie Rebant and her team for the work she does on our roads which ensures emergency vehicles can make it up to us.

- Filed renewal today. We will receive our new certification in the next week.
- Several folks are interested in volunteering and helping Mark on the committee.
- Considering acquiring quarterly updates from our volunteers instead of one time at the end of the year.
- Francy Luscher thanked Mark Johnson for initiating the discussion to open the hours on weekends to do the work on our properties. This was very helpful as many can't do the work on weekdays.

d.	Neighborhood Watch	Gary Farmer	Acknowledged No Update
e.	Recreation	Chris Peabody	Acknowledged No Update
f.	Social	Jack Wennersten	No Update Provided
g.	Welcome	Rosemary Bigelow	Acknowledged No Update

Task Force Reports & Chairs

a.	Barn	Dave Creason	Acknowledged No Update
b.	Sports Courts	Chris Peabody	Waiting on Funding
c.	Bus. Use of Property	Tom Holz	Waiting on Board

New Business

a. Recommendation for $50k CD – *Discussed above*
b. Request for addition of Stop Signs
   - Steve Katz noted that we have several requests for stop signs at the Herbert Quick and Mountainside Road 3-way intersection due to many near misses.
   - Stephanie Rebant will obtain a quote for three 3-way all-way Stop signs.
   - Dawne Holz suggested that we consider lines in the road, if we find the signs are not enough
   - Speed bump estimate, Stephanie will also get a quote.
   - Gary Farmer noted that there is no speed limit sign on Herbert Quick. Nor is there a speed limit sign turning right up by the meadow.
c. Bylaws Amendment Task Force
   - Project Charter – Board Approval; Task Force Chair; Board Liaison; plus 5 Members

Motion by Dawne Holz to approve the Bylaw Amendment Task Force Charter. Dave Creason Seconded.
Discussion: Dawne noted that this came up during the past election. Steve Katz asked how the members are recruited and selected. Dawne noted that the Charter says members may volunteer to serve on the task force and will be appointed by the Board. Once appointed, that TF will determine their Chair and Vice Chair. That is all in the Charter. Steve asked about the removal of a member. Dawne noted that the charter says, "... for good cause shown or failure to attend 2/3rds of task force meetings."
Vote: Yea=4, Nay=0, Absent 3

   - Next step is a notice to go out to all members saying that we are looking for 4 volunteers. In addition, one Board Member must be on the Task Force with a total of 5 members on the Task Force. Valerie Creason will send out communication to the community calling for volunteers that will include a link to the charter on the website.
   - During the December 16th board meeting, members may be announced.
d. CMA Policy Resolutions
   - Road Maintenance Policy – Draft created – Pending Board review and edits
     - Dawne Holz noted that this came up last year during snowplow removal.
     - Steve Katz asked about page 4, c. Additional information. Change "emergent" to "emergency" repairs. Dawne agreed.
     - Steve Katz also noted that under Appendix A – Bobcat Trail it shows as asphalt and needs to be changed to gravel. Dawne agreed.
     - Valerie Creason noted the Driveway definition needs to be fixed as it is inaccurate. Specifically, the last part of the sentence noting even though it services two or more homes. Dawne Holz noted the specific wording, "… not withstanding they may lead to more than 1 home." Valerie agreed and pointed out that this means the same thing and will impact many community members. CMA has always maintained roads that serve 2 or more homes. It has been this way for 40+ years as part of

the founders' vision. This will have a significant financial impact to many homeowners in the community if this wording is not changed.
    - *Several examples and misunderstandings were discussed* including Bobcat Trail (Steve Katz and Mark Johnson's road).
    - While specific details are not defined in the governing documents. CMA has been maintaining these roads as the founders recognized.
    - Dawne Holz asked for some documentation of CMA maintaining these roads. Steve Katz pointed to the snowplow contract as an example as to what had been done.
    - Dawne Holz noted this policy document came from Tom Holz and believes CMA should not be working on private property. If CMA hits a deck, lifts a power line, hits a water line that falls on CMA. Valerie agreed and said this is no different from when the snowplow operator hit the North Signal Wire off the main road. WS Operations Manager worked through the issue with the plow operator.
    - Mark Johnson noted that precedence should play into this.
    - Valerie began listing all of the roads affected – Daffodil Ter. (serving 2 lots), Rush No More Ln (serving 2 lots), Buckwheat Ct (serving 2 lots), Mountainside Ln (serving 2 lots), Mountainside Dr (serving 4 lots), Bobcat Court (serving 3 lots), Bobcat Trail (serving 2 lots), and Gopher Ln (serving 4 lots), and others serving 2 or more homes.
    - Further discussion on this new Driveway definition is forthcoming. The current definition will carry significant financial impact to many homeowners.
    - Steve Katz noted Stephanie Rebant will continue as performed in years past.

Old Business

a. Placards – *Discussed above*
b. Update DACC Charter – *Due December 31st.*
c. CMA Policy Resolutions
    - Noise Policy – Draft created – Pending Board review and edits
    - Short Term Rental Policy – Draft in progress
    - Schedule of Fines, Fees, and Charges – Draft in progress
    - Enforcement – Draft in progress
d. Project List (Office painting, Office floor, Pool Fence, etc.) – *Discussed above*
    - Pool Fence is waiting on GHS Excavating to clear the back. GHS has been busy with Water and Sewer support, which is priority.

Owners Forum

- None

Executive Session (held prior to open session)

a. 2021 Corporate Transparency Act – Dept. of the Treasury's Financial Crimes Enforcement Network (FinCEN)
b. Delinquency Report
c. Violations/Legal

Adjournment

At 9:00pm, Valerie Creason motioned to adjourn; Steve Katz seconded. Vote: Yea=4, Nay=0, Absent=3

Coolfont Mountainside Association
Board of Directors Meeting – December 16, 2024
Financial Report

Submitted by Dawne Holz, CMA Treasurer

Overview

The financial reports as of 11/30/24 are attached and cover 91.7% of the 2024 budget year. Expenses are about 96.26% – slightly over budget. (Expenses include WS payroll, which is reimbursed each quarter from CMAWS.)

Meetings

There were no Finance Committee meetings since the last board meeting.

Delinquent Accounts

There are no unpaid assessment accounts. The last was paid on 7/7/24.

Updates

Updates include details of attached reports as of the end of the previous month.

December/January

- Set up new 2024 budget in QuickBooks. Still working to close out 2023.
- Finance Charge rate (interest rate) updated to 11.5% for 2024 (Prime 8.5% + 3%)
- The mileage rate increased from 65.5 cents/mile to 67 cents per mile (CMA is based on IRS business mileage rate). Updated Neighborhood Watch mileage spreadsheet with new rate.
- Invoices for 2024 Annual Assessments were sent out on 1/5/24. About 27% of owners have paid to date. Reminders will go out on/about 1/25/24.

January

- 540 Snow Removal is over budget due to several storms and the addition of chemical treatment of roadways.
- 762 Payment Processing fees are slightly over budget. More owners took advantage of online payments this year. Also, the majority of those fees are realized in January, which slightly skews the overall expenses for the first several months.
- 66000 Payroll Expenses. Reminder that these payroll expenses are shown on the CMA budget but are reimbursed by CMAWS at the end of each quarter.

February

- 381 Misc Income is from two mailbox fees paid.
- Expenses overages are still due to payment processing fees and snow removal.

March

- 670 Barn Maintenance includes costs to mitigate roof leaks, alarm service, and secure building.
- 550 Storm Water Maintenance includes ditch cleaning from late 2023, billed in 2024.

April

- 850/855 Insurance premiums came in slightly higher than budgeted (overall about $300).

May

- Pool expenses have started coming in. June water bill and propane refill have not been posted yet.

June

- The 18-month CD will renew on 8/8/24 (CD 112730). Next maturity is 2/8/26.
- Transfers to CMAWS have been suspended with the application of interim water/sewer rates.

July

- No significant updates in expenses.

August/September

- Last invoices for pool season are trickling in, still some payroll expenses to post and closing costs.
- 560 Forest Maintenance is nearly expended. Addressing only emergency work.

October

- Reviewed all current CD investments with bank representative. Updated QuickBooks with current terms and maturity dates.
- **Recommend we invest another $50K from Reserves Savings account in an 18-month CD – as we have no significant Reserve expenditures in the short term.**
- 530 Road Supplies is over budget due to the significant increase in cost of gravel for roads.
- 570 Grounds Maintenance is over budget due to mowing through all of September.

November

- 570 Grounds Maintenance incurred additional costs for October.
- 450 Office Maintenance include AVWaste fees, will call to confirm pick up is suspended until April.
- 443 Pool Attendants and 442 CPO Services are understated, as some of this expense is in 66000 Payroll expenses. The bookkeeper is correcting entries.
- 750 Misc Operations is a payroll mis-posting. Have asked the Bookkeeper to correct this.
- Reminders to go out to all committee so submit any final invoices before 12/31/24.

COOLFONT MOUNTAINSIDE ASSOCIATION

COMMUNICATIONS COMMITTEE REPORT

BOARD OF DIRECTORS REPORT – DECEMBER 16, 2024

Submitted by Dawne Holz *Information as of December 14, 2024*

SOCIAL MEDIA

Facebook: 107 members. Dawne Holz, Gina Baum, Admins.

No update to FB Guidelines needed.

Google Group: 209 subscribers. Admins are Dawne Holz (F-1); Clare Miller (A-3); and Barbara Shulman (T-8).

Clare and Barbara will review the GG User Policy from 2020 and suggest any updates.

WEBSITE

Admins: Dawne Holz, Erfan Zayer, Heidi Splane

New website up and running. Working out any kinks as we find them. Still some formatting work to do.

Working on better solution for securing owner documents.

TRAFFIC ANALYTICS



Top Posts/Pages

1.	Coolfont Mountainside Association	176
2.	Coolfont Mountainside Association – A mountainside community in Berkeley Springs, West Virginia	107
3.	Member Directory (secure) – Coolfont Mountainside Association	61
4.	Amenities – Coolfont Mountainside Association	50
5.	Association Documents – Coolfont Mountainside Association	44
6.	Suggested Contractors – Coolfont Mountainside Association	39
7.	Documents (secure) – Coolfont Mountainside Association	30
8.	About – Coolfont Mountainside Association	29
9.	Community – Coolfont Mountainside Association	27
10.	Water & Sewer – Coolfont Mountainside Association	18

CONTENT

- Posted November meeting reports.
- Uploaded August and October approved minutes.
- Posted December board meeting notice.
- Membership Directory updates: N-1,
- Posted numerous PSC Tariff Review Documents: Comments, Filings, etc

SOFTWARE UPDATES

- Updated to WP 6.7 and updated database.
- Plugins all on Auto Update.

Date Received	Lot #	Name	Phone	Email	Description	Status	Entered by	Reviewed by	Date Reviewed	Completed by	Date Completed	Notes
01/31/2024	N-4	Jaron Ervin	443-603-5725	jaronervin@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	02/02/2024	Gary Farmer	02/23/2024	Requested additional information receive and approved.
01/31/2024		Nick Trotta	513-633-0806	nicktrotta,a@gmail.com	Install pergola	Incomplete	Gary Farmer					Owner requested advice prior to submitting application.
04/01/2024	L-2	Elaine Geiger		Elaine.Geiger@uhc.com	Paint house exterior	Received	Gary Farmer	Gary Farmer	04/01/2024			Submitted color rejected. Requested resubmission with proper color.
04/05/2024		Mathew Ford	717-521-8260	ford.matthew@outlook.com	new house construction	Incomplete	Gary Farmer	Gary Farmer				Seeking advise on potential new house construction.
04/20/2024	J-3	Grace Cabungcal	202-919-9381	grace@bluemaple.co	Paint exteriot and install hot tub	Approved	Gary Farmer	Gary Farmer	04/23/2024	Gary Farmer	04/23/2024	04/20/2024 Returned incomplete application for additional information. 04/23/2024 Resubmitted with complete information.
04/30/2024	K-4	N. Shalom/J. Hittman	301-300-3018		Bathroom addition	Incomplete	Gary Farmer					Architect contact. Application to follow.
05/02/2024	P-6	Megan Moore	443-223-5098	evlmegan@comcast.net	exterior painting	Approved	Gary Farmer	Gary Farmer	05/02/2024	Gary Farmer	05/02/2024	Exterior paint color submitted and approved.
05/08/2024	C-3	Ian Joseph	202-215-8650	ijoseph99@gmail.com	Install underground propane tank and exterior color change	Approved	Gary Farmer	Gary Farmer	05/16/2024	Gary Farmer	05/16/2024	Requested new application to reflect requested changes.
06/17/2024	F-2	Valerie Creason	703-409-6509	valerie.creason@gmail.com	Display ADT security sign	Approved	Gary Farmer	Annmarie Stauder	06/21/2024	Gary Farmer	07/10/2024	
08/03/2024	E-3	Gina Baum	443-253-8322	gina@ginabaum.com	Revise exterior color to green	Approved	Gary Farmer	Gary Farmer	08/02/2024	Gary Farmer	08/05/2024	Exterior color submitted and approved.
08/14/2024	C-3	Ian Joseph	202-215-8650	ijoseph99@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	08/28/2024	Gary Farmer	08/28/2024	Approved as submitted with evergreen tree screning.
08/30/2024	J-1	Siri Sophar	210-219-3135	sirilu@sbcglobal.net	Install exterior elevator	Approved	Gary Farmer	Gary Farmer	08/31/2024	Gary Farmer	08/31/2024	Approved as submitted.
09/23/2024	F-6	Richard Adjuo	301-300-9723	rich.indp@gmail.com	Install hot tub	Approved	Gary Farmer	Gary Farmer	10/02/2024	Gary Farmer	10/02/2024	Approved as submitted.
10/01/2024	K-4	N. Shalom/J. Hittman	301-300-3018	nshalom1@gmail.com	Add bathroom	In Review	Gary Farmer	Gary Farmer	10/08/2024	Gary Farmer	11/25/2024	Replied to submitter with comments/questions on color, electrical, water, & sewer issues.
10/15/2024	E-3	Gina Baum	443-253-8322	gina@ginabaum.com	Add awning over door	Approved	Gary Farmer	Gary Farmer	10/17/2024	Gary Farmer	10/17/2024	Approved as submitted
10/27/2024	T-5	Gerda Yearwood	301-523-7119	gerda@verizon.net	Replace damaged decking	Approved	Gary Farmer	Gary Farmer	10/28/2024	Gary Farmer	10/28/2024	Approved as submitted.
12/04/2024	N-1	Brian Frey	208-755-0154	dbrianfrey@gmail.com	Installation of hot tub and fire pit	In Review	Gary Farmer					Advised owner to complete and submit DACC application.
12/7/2024	H-3	Carl Jasper	240-446-8198	carlj@aol.com	Temporary use of dumpster for disposal	In Review	Gary Farmer	Gary Farmer	12/11/2024	Gary Farmer	12/11/2024	Approved for 2 weeks in 2Q2025 upon notice by owner.

Compare Results

Old File:		New File:
CMA Committee Charter - DACC 2024-07 Pending.pdf	versus	**CMA Committee Charter - DACC 2024-12-16.pdf**
3 pages (67 KB)		**3 pages (68 KB)**
12/15/24, 10:54:47.PM		12/15/24, 10:53:42.PM

Total Changes

11

Content

6 Replacements

3 Insertions

2 Deletions

Styling and Annotations

0 Styling

0 Annotations

Go to First Change (page 1)

COOLFONT MOUNTAINSIDE ASSOCIATION DEVELOPMENT AND ARCHITECTURAL CONTROL COMMITTEE (DACC) CHARTER

AUTHORITY

WHEREAS, Article 11, Section 11.1 of the Bylaws states that "With the exception of the Nominating Committee, chairs of the following Committees will be appointed by the President by the time of the second meeting of the Board following the Annual Meeting: Finance; Recreational Facilities; and Development and Architectural Control. If the Chair of a committee is not a Director, the President shall appoint a Director to be liaison between the Committee and the Board. Liaison appointees will report upon actions taken by their Committees to the Board." and

WHEREAS, Article 11, Section 11.4 of the Bylaws states, "From time to time the Board may provide for appointment of ad hoc committees or task forces from among the Members, and shall specify their authority and functions."

NOW THEREFORE, be it resolved that a Development and Architectural Control Committee (DACC) shall be established, and that the following procedures for this Committee be adopted and implemented herewith:

RESPONSIBILITIES

This Committee shall serve at the direction of and at the pleasure of the Board of Directors ("Board") of Coolfont Mountainside Association ("Association"). This Committee shall have no authority to speak on behalf of the Board or to bind the Association financially or contractually, unless authorized by the Board.

The primary responsibility of the Development and Architectural Control Committee is to advise and assist the Board in the discharge of responsibilities relating to new development and to physical changes in the current Association.

The Committee will perform the following:

- Annually review the existing architectural guidelines, "Design Guidelines and Building Regulations," recommending to the Board any desired amendments. While the guidelines should strive to be historically consistent, they should also incorporate technological and architectural improvements.
- Review all written plans for improvements on all lands within the Association and approve or disapprove them within thirty (30) days, using for criteria the Covenants and existing guidelines.
- Inspect approved renovation upon completion for compliance with approved design.

The Board may assign the Committee additional tasks from time to time.

Each year, the Committee will prepare a proposed annual budget and submit the same to the Treasurer when requested. Any expenditures outside of its approved annual budget must be approved by the Board in advance.

ELIGIBILITY

Committee candidates and members shall be property owners in good standing. Good standing shall be defined as the absence of any liens, privilege penalty, architectural or covenants violation, or pending legal action with the Coolfont Mountainside Association.

No person shall be eligible for appointment as a Committee member unless such person is a member of the Association in accordance with CMA Covenants and Restrictions.

APPOINTMENT AND TERMS

This Committee shall be comprised of 2-5 members. Recruitment of candidates may be done through the CMA Google Group, a newsletter article, an announcement at the Annual Meeting, or by any other means deemed appropriate by the Board. The Board will strive to ensure that members from varying house types within the Association are represented on its committees.

Interested owners must submit a written request to the Committee for appointment to the Committee. Email requests are acceptable. Committee members in good standing are eligible for reappointment.

Per CMA Bylaws, the Board President will appoint a Committee Chairperson each year and may make additional appointments throughout the year if vacancies occur or if new Committees are created.

REMOVAL OF MEMBERS

The Board may remove any Committee member, including the chairperson, at any time.

The Committee may make recommendations to the Board regarding the removal of Committee members.

A Committee member may be removed for cause, upon written notice from the Committee Chairperson.

ELECTION OF OFFICERS

The Board President shall appoint the Chairperson of the Committee. The members of the Committee may make recommendations to the Board for the appointment of a chairperson.

The Chairperson, or their designee, shall be responsible for chairing meetings of the Committee.

The Chairperson shall be responsible for recording accurate minutes of the Committee's meetings and submitting them to the CMA Secretary, in a timely manner, for inclusion in the Board meeting package. Minutes shall include a record of the date, time, and place of each meeting. Minutes shall also include a record of Committee member attendance and all votes of the Committee.

MEETINGS

Committee meetings shall be held in a mutually agreed upon location of the committee members, or via online teleconference. All Committee meetings shall be open to the membership. Notice of the meetings and agenda for the meeting shall be made available to the members via the CMA Google Group, newsletter, or email to the membership.

The Committee Chairperson shall be responsible for contacting the members of the Committee regarding rescheduled or canceled meetings.

A majority of the total number of the Committee members shall constitute a quorum. A majority vote of members while a quorum is present shall constitute a decision of the Committee. All voting shall be conducted in open session.

All Committee meetings shall be conducted generally in accordance with Robert's Rules of Order.

COMMUNICATIONS

In the interest of ensuring strong communications between the Board and the Committee, the Committee Chairperson, or a designee, will attend each regularly scheduled business meeting of the Board. The Committee representative will present Committee recommendations, update the Board on the status of pending Committee tasks, request assistance from the Board, as needed, and answer any questions the Board may have regarding Committee assignments.

The Committee is expected to maintain regular communication with the Board Liaison designated by the Board.

It is expected that the Committee will provide accurate and timely information about its activities for publication in the newsletter and other communication vehicles of the Association. It is the responsibility of the Committee to ensure that this information is updated on a regular basis.

The committee will review its charter at least biannually and recommend any proposed changes to the Board for review.

APPROVAL

This charter was approved by the CMA Board on _____ and approval is noted in the minutes of that meeting.

This charter was last updated on_____.

Gmail **Valerie Creason <valerie.creason@gmail.com>**

Re: Dec 16th Board Meeting - Monthly Committee and Task Force Reports/Updates needed

1 message

Chris Peabody <cpeabody61@gmail.com> Mon, Dec 9, 2024 at 1:45 PM
To: Valerie Creason <valerie.creason@gmail.com>, David Creason <creason.dave@gmail.com>

Hey Valerie/Dave

I'll miss all the action at the next HOA meeting, it's our company holiday dinner that night.

Sports Courts: Nothing to report. Financing, Financing, Financing....!

Trails: I was able to clear almost all the trails with my backpack blower just before Thanksgiving. I also bought some blue and white paint and was "re-marking" a few spots. They're all in pretty good shape. I did not get to the section of the White Trail between Salmon Lane and its intersection with the Blue Trail. It's been a few months since I was able to walk that section, it has some areas that are unmarked and a large tree was across it - so, it'll be the spring project.

Best to both - happy holidays if I don't see you before them....
Chris Peabody
S-5

On Sat, Dec 7, 2024 at 5:52 PM Valerie Creason <valerie.creason@gmail.com> wrote:

> Hello Committee and Task Force Chairs,
>
> Where did November go? :) I trust everyone has been preparing their reports for the coming Board Meeting. In preparation for the Board meeting, **please send to me your updates on or before Friday, December 13th.** This will allow time for distribution and review in advance of the Board meeting.
>
> If you have no updates to report, please be sure to respond to this email letting me know.
>
> Thank you,
> Valerie Creason
> CMA Secretary

Gmail **Valerie Creason <valerie.creason@gmail.com>**

RE: Dec 16th Board Meeting - Monthly Committee and Task Force Reports/Updates needed

1 message

rosemary <rosemary@mygrandmotherslace.com> Sat, Dec 7, 2024 at 7:48 PM
To: Valerie Creason <valerie.creason@gmail.com>

Hi Valerie,
The Welcome committees sent 1 newcomer letter to the new owmers.of N1. They haven't responded yet.
Rosemary

Sent from my Verizon, Samsung Galaxy smartphone

-------- Original message --------
From: Valerie Creason <valerie.creason@gmail.com>
Date: 12/7/24 5:53 PM (GMT-05:00)
To: Dawne Holz <dawneholz@gmail.com>, Gary Farmer <garyleefarmer@gmail.com>, Rosemary <rosemary@mygrandmotherslace.com>, "John R. Wennersten" <jack@wennersten.org>, Wennersten Jack <jrwennersten@gmail.com>, Dave Creason <creason.dave@gmail.com>, Steph <srebant@berkeleyspringscottagerentals.com>, Cathy Levey <leveycathy@gmail.com>, Chris Peabody <cpeabody61@gmail.com>, Tom H <tholz54@gmail.com>
Subject: Dec 16th Board Meeting - Monthly Committee and Task Force Reports/Updates needed

Hello Committee and Task Force Chairs,

Where did November go? :) I trust everyone has been preparing their reports for the coming Board Meeting. In preparation for the Board meeting, **please send to me your updates on or before Friday, December 13th.** This will allow time for distribution and review in advance of the Board meeting.

If you have no updates to report, please be sure to respond to this email letting me know.

Thank you,
Valerie Creason
CMA Secretary